

Court No. - 3

Case :- WRIT - C No. - 28189 of 2023

Petitioner :- Charan Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bhishm Pal Singh, Anoop Tiwari

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Heard learned counsel for the petitioner and Sri Alok Mishra, learned counsel appearing for the respondent no.2/ Executive Engineer, Electricity Distribution Division, Dakshinanchal Vidyut Vitran Nigam Ltd. District- Kasganj.

A recovery certificate when was issued and a citation to appear was sent to the petitioner asking him for paying an amount of Rs. 1,69,724/-, the petitioner did not pay and instead, has now approached this Court praying for fixing of instalments.

Sri Alok Mishra, learned counsel appearing for the respondent no.2 has submitted that the petitioner instead of approaching this Court ought to have availed the facility as is available under the Clause 6.14 of the U.P. Electricity Supply Code, 2005 for the fixing of instalments.

Learned counsel for the petitioner upon being shown the Clause 6.14 of the U.P. Electricity Supply Code, 2005 was ready to pay the amount in instalments after getting the same fixed under aforesaid clause.

Under such circumstances, we provide that if the petitioner applies before the respondent no.2/ Executive Engineer, Electricity

Distribution Division, Dakshinanchal Vidyut Vitran Nigam Ltd.
District- Kasganj for the purpose of payment of amount in instalment within a period of three weeks from today then the application shall be considered in accordance with the provision of Clause 6.14 of the U.P. Electricity Supply Code, 2005 and instalments shall be fixed.

The whole exercise shall be completed within a period of three weeks from the receipt of the application.

With these observations, the instant writ petition stands **disposed of**.

Order Date :- 29.8.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)